

8. 9:00 AM CASE NUMBER: L24-09682
CASE NAME: BANK OF AMERICA, N.A. VS. MELISSA WELLBORN
***HEARING ON MOTION IN RE: MOTION TO BE RELIEVED AS COUNSEL FILED BY DEF ATTY ON**
09/19/2025
FILED BY:
TENTATIVE RULING:

Timothy Reed (“Counsel”) filed a Motion to be Relieved as Counsel on September 19, 2025 (the “Motion to be Relieved as Counsel”). The matter was set for hearing on November 25, 2025.

Background

Counsel seeks to be relieved as attorneys for defendant Melissa Wellborn (“Defendant”). The supporting declaration filed by Counsel indicates that “Client has canceled Attorney’s services.” See Declaration filed September 19, 2025, ¶2. Defendant has been given notice of the Motion to be Relieved as Counsel. *Id.* at ¶3.

Analysis

The Motion to be Relieved as Counsel is unopposed.

Disposition

The Court finds and rules as follows:

1. The Motion to be Relieved as Counsel is GRANTED.
2. The Court shall issue the order after hearing.

9. 9:00 AM CASE NUMBER: L24-10510
CASE NAME: BANK OF AMERICA, N.A. VS. CRYSTAL MAGDALENO
***HEARING ON MOTION IN RE: MOTION FOR JUDGMENT ON PLEADINGS FILED BY PLN ON**
09/19/2025
FILED BY: BANK OF AMERICA, N.A.
TENTATIVE RULING:

Plaintiff Bank of America, N.A. (“Plaintiff”) filed a Motion for Judgment on the Pleadings on September 19, 2025 (the “Motion for Judgment on the Pleadings”). The Motion for Judgment on the Pleadings was set for hearing on December 2, 2025. The motion is unopposed.

Background

The Motion for Judgment on the Pleadings is based on the contention that the operative

complaint states facts sufficient to constitute a cause of action and the answer does not state facts sufficient to constitute a defense. Plaintiff contends that defendant Crystal A Magdaleno (the “Defendant”) admits all statements in the complaint are true and that Defendant owes the alleged debt.

Analysis

A motion for judgment on the pleadings may be brought by a plaintiff where the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint. Code Civ. Proc. § 438(c); see Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2024) (“Rutter Civ. Pro.”) § 7:290. The grounds for a motion for judgment on the pleadings must appear on the face of the pleadings or be based on facts that a court may judicially notice. Civ. Proc. § 438(d); Rutter Civ. Pro., § 7:291.

Plaintiff’s Complaint alleges a single cause of action for Breach of Contract based on the allegation that Defendant became indebted in the amount of \$2,570.85 on a credit card account. See Complaint filed November 27, 2024, p. 2, ¶¶8-10 and Attachment (First Cause of Action), p. 1, ¶¶ BC-1 through BC-4.

Defendant’s Answer was filed February 5, 2025. The Answer does not deny any of the allegations of the Complaint. See Answer filed February 5, 2025. Box 3.a. of the Answer form (general denial) is not checked. *Id.* Box 3.b. of the Answer form (admission with specific denials) is checked. *Id.* However, no exceptions are stated contending any particular allegations of the Complaint are untrue. *Id.* Rather, Defendant affirmatively acknowledged liability for the debt, asking to make smaller payments by writing the following at Paragraph 6:

Let me make smaller payments over time.

Answer, p. 2, ¶6.

No other denials or cognizable affirmative defenses are set forth in the Answer. Box 4 regarding any affirmative defenses is checked but only states “My income changes month to month.” Answer, p. 2, ¶4.

Even liberally construing the pleading filed by a self-represented litigant, it is evident that Defendant admits the fact of the debt and does not state any cognizable defense to the liability. While the expressed desire to want to work about a payment arrangement is a laudable one, that does not change the plain conclusion that the Answer does not state facts sufficient to constitute a defense to the Complaint.

The Motion for Judgment on the Pleadings was unopposed.

Having considered the moving papers and any further pleadings submitted, the Court makes the following findings:

1. Plaintiff’s Complaint states facts sufficient to constitute a cause or causes of action against the Defendant and Defendant’s Answer does not state facts sufficient to

constitute a defense to the Complaint.

2. Defendant became indebted in the amount of \$2,570.85 on the subject credit card account (the “Debt”).
3. Plaintiff is entitled to judgment as a matter of law against Defendant on the Complaint.

Costs

As part of the moving papers, a Memorandum of Costs was filed September 19, 2025. The Memorandum of Costs reflects recoverable costs in the sum of \$358.61.

Disposition

The Court finds and orders as follows:

1. The Motion for Judgment on the Pleadings is GRANTED.
2. A proposed form of judgment was lodged with the Court which the Court shall execute and enter.

10. 9:00 AM CASE NUMBER: L25-02849
CASE NAME: JASMANE HAYES VS. WILLOW GLEN APARTMENTS
***HEARING ON MOTION IN RE: MOTION TO QUASH FILED BY DEF RELIANT PROPERTY**
MANAGEMENT, INC ON 09/18/2025
FILED BY: RELIANT PROPERTY MANAGEMENT
TENTATIVE RULING:

Reliant Property Management, Inc., erroneously named herein as “RELIANT PROPERTY MANAGEMENT” (“Reliant”) filed a Motion to Quash Service of Process on September 18, 2025 (the “Motion to Quash”). The Motion to Quash was set for hearing on December 2, 2025. The motion is opposed.

Background

Plaintiff Jasmane Hayes (“Plaintiff”) filed this action on March 12, 2025, alleging multiple causes of action stemming from allegations that the named defendants induced her to vacate her apartment at the “Willow Glen Apartments” in Hercules, California, by agreeing to waive certain rents and then renegeing on the agreement after Plaintiff vacated. See Complaint for Damages filed March 12, 2025 (the “Complaint”), ¶1 *et seq.*

The named defendants include:

1. “WILLOW GLEN APARTMENTS”
2. “RELIANT PROPERTY MANAGEMENT”
3. “DOES 1-100”

See Complaint, p. 1 (caption).